STANDARD OPERATING PROCEDURE			P-5100	
	SARPY COUNTY SHERIFF'S OFFICE PAPILLION * NEBRASKA **GREG LONDON** **SHERIFF**	DATE ISSUED 06/01/06	DATE REVISED **09/11/24**	DATE REVIEWED 02/02/25
		APPROVED: *GREG LONDON*		
CHAPTER TITLE ROAD PATROL	RESOURCES N.R.S. 43-2004 CALEA 41.2.5, 41.2.6			
SUBJECT MISSING PERSONS	CROSS REFERENCE G-9500 AMBER ALERT G-12000 ALL HAZARDS PLAN G-9600 A CHILD IS MISSING ALERT G-10410 FIELD COMMAND POST P-4210 OUTDOOR SEARCHES P-4500 CHILD ABUSE/NEGLECT P-4600 EMERGENCY PROTECTIVE CUSTODY P-4720 JUVENILE DETENTION/CITATION P-4810 CRIME SCENE			

I. Purpose:

The purpose of this policy is to establish the procedures for responding to missing adults and juveniles.

II. Policy:

The Sarpy County Sheriff's Office shall conduct prompt and thorough investigations on all adult missing persons and missing or unidentified children including runaways, abandoned children, abducted children, or children with other missing status. A procedure for handling adult and juvenile missing person incidents is provided as a guide for investigative efforts.

III. Procedures:

A. Missing Adult-Deputy Responsibilities:

1. The initially assigned deputy shall respond and determine if the adult is considered missing. For the purposes of this policy, missing adult shall mean a person who has been reported absent and meets one of the following conditions:

a) The person is physically or mentally disabled.

b) The person may be the subject of foul play.

c) The person is unable to properly care for himself or herself due to age or infirmity.

d) The person is missing under unusual circumstances.

e) Evidence exists that the person is a danger to himself or herself or others.

f) The person is a "Project Lifesaver" client. (See G-9700 Project Lifesaver)

2. If the initial deputy determines the adult to be missing under the above conditions, he or she shall adhere to the following procedures:

a) The deputy shall gather all relevant information including:

(1) Demographic information: name, date of birth, physical description, etc.
(2) Time and place of last known location.
(3) Identity of the last person to see the missing adult.
(4) Extent of search already conducted.
(5) Current physical and mental condition including medications.
(6) The deputy shall obtain a recent photograph.

b) The deputy shall notify Communications to have the individual entered in NCIC/NCIS as a missing person.

c) If the person is missing under circumstances that would indicate a kidnapping or other felony crime against a person, the deputy shall notify his or her shift supervisor.

d) The deputy shall conduct a follow-up investigation and search, if applicable.

e) The deputy shall complete a Notification of Lost or Missing Person Form (i.e. the Nebraska State Patrol Notification of Lost or Missing Person Form NSP720) with a photograph attached and an incident report.

B. Missing Adult-Supervisor Responsibilities:

1. The shift supervisor shall notify Communications and request the Project Lifesaver Coordinator be contacted. The shift supervisor shall also notify the on-duty watch commander or ADC. The shift supervisor shall respond to the scene.

2. The shift supervisor shall notify the on-call investigator on all adults missing under circumstances that would indicate foul play.

3. The shift supervisor shall assess the situation and may request additional personnel to conduct a search of the area. If additional personnel are requested, the Shift Supervisor shall adhere to G-12000 All Hazards Plan and G-10410 Field Command Post.

4. The shift supervisor shall ensure that all reports and notifications are completed.

C. Dissemination of Collected Information:

1. In all instances where the missing person has been gone less than 24 hours, a broadcast will be made over LE-West and LE-East, and LE-Sheriff-S.

2. Public Notification via an AMBER Alert (see G-9500 AMBER Alert),A Child is Missing (see G-9600 A Child is Missing), or the Nebraska Endangered Missing Advisory (see G-9900 Nebraska Endangered Missing Advisory) will be made if appropriate.

3. The ADC will be notified of all cases involving a felony.

D. Follow-Up Investigation and Search:

1. The Investigations Division has primary responsibility for follow-up investigation on all missing person reports.

2. The follow-up investigation will include:

a) Initiating/maintaining contact with the reporting party to receive and/or impart additional information.
b) Collect and preserve additional evidence.
c) Provide ongoing notifications to the public and other agencies as appropriate.
d) Make necessary record checks and contacting agencies or persons who could be helpful in locating the missing person.
e) Ensuring communications modifies an/or removes data from NCIC/NCIS as it is received.

E. Location of Missing Adult-Deputy Responsibilities: If a deputy locates a missing adult, he or she shall adhere to the following procedures:

1. The missing person shall be questioned to determine the circumstances around the disappearance and whether criminal activity was involved.

a) If criminal activity was involved, the deputy shall take appropriate investigative measures.

2. If the missing adult cannot care for himself or herself, the deputy shall arrange for proper care. If the missing adult is a danger to himself or herself or others, the deputy shall adhere to the Emergency Protective Custody procedures (see P-4600 Emergency Protective Custody).

3. If the missing person is a competent adult:

a) The deputy shall advise the individual that he or she is the subject of a missing person investigation.

b) The deputy shall request the individual contact the reporting party.

c) The deputy cannot require the individual make such contact or return home.

4. The deputy shall advise the reporting party of the well-being of the located adult, but shall not provide the current location of the found party, unless the missing person is physically or mentally handicapped and the reporting party is the legal custodian of the individual or the missing person provides permission to reveal his or her location to the reporting party.

5. The deputy shall contact Communications and have the person removed from NCIC/NCIS.

6. The deputy shall complete a returned missing person supplemental report using the original report number from the missing person report. The new report number obtained for the supplemental report shall be the related report number.

F. Missing Juvenile/Unusual Circumstances-Deputy Responsibilities:

1. Unusual Circumstances shall include juveniles that are:

a) Thirteen years of age or younger.
b) Mentally or physically handicapped.
c) Drug dependent, including both prescription and illicit substances.
d) A potential victim of foul play.
e) In a life threatening situation.

2. The initial assigned deputy shall respond to the scene and adhere to the following procedures:

a) The deputy shall interview the reporting party to determine the circumstances surrounding the disappearance including the last known location.

b) The deputy shall obtain a description of the child including: height, weight, hair color, eye color, clothing, etc.

c) The deputy shall obtain a recent photograph.

d) In all instances where the missing juvenile has been gone less than 24 hours, a broadcast will be made over LE-Sheriff-S, LE-West-S and LE-East-S.

e) The initial responding deputies should conduct a search of the immediate area (even if the child was last seen at another location) including:

(1) All of the areas of the residence (including closets, storage areas, washers, dryers, refrigerators, freezers, under beds, etc.).

(2) The exterior of the residence including nearby fields and wooded areas.

(3) All vehicles (including trunks, if possible).

f) The deputy should determine all possible locations for the child including friends and family members and contact those parties.

g) The deputy should determine the child's custody status to ascertain if the disappearance could be related to a custody issue.

h) The deputy should make an initial assessment regarding the type of incident and notify the shift supervisor and request additional deputies to assist.

i) If the deputy believes the child was possibly abducted, he or she shall:

(1) Ensure the shift supervisor is immediately notified.

(2) Attempt to obtain all relevant information regarding the possible abductor.

(3) Attempt to obtain a vehicle description and license plate number.

(4) Secure and protect the area as a potential crime scene (P-4810 Crime Scene).

(5) Identify and secure all witnesses.

3. The initially assigned deputy shall complete a Notification of Lost or Missing Person Form and an incident report. The deputy shall ensure a photograph of the missing child is attached to the Notification of Lost or Missing Person Form.

a) If the child is located or returns home prior to a report being completed, no report is necessary, unless the child was missing as a result of neglect or other criminal activity (see P-4500 Child Abuse/Neglect).

4. The initially assigned deputy shall notify Communications to have the juvenile entered as missing.

G. Missing Juvenile/Unusual Circumstances-Supervisor Responsibilities: If possible, the shift supervisor shall respond to all calls of juveniles missing under unusual circumstances.

1. The shift supervisor shall obtain a briefing from the first responders and determine the need for additional personnel.

2. The shift supervisor shall contact the on-duty watch commander or the ADC and the on-call investigator. The ADC shall be responsible for notifying the Nebraska State Patrol reference an Amber Alert (see G-9500 Amber Alert).

3. The shift supervisor may also contact A Child Is Missing Inc. to assist with locating the missing juvenile (see G-9600 A Child Is Missing Alert)

4. If necessary, the shift supervisor shall establish a field command post (see G-10410 Field Command Post).

5. The shift supervisor shall organize and coordinate search efforts (see P-4210 Outdoor Searches). If necessary, the shift supervisor shall organize a house to house search of the area.

6. The shift supervisor shall ensure that all reports and notifications are completed.

H. Follow-Up Investigation and Search:

1. The Investigations Division has primary responsibility for follow-up investigation on all missing person reports.

2. The follow-up investigation will include:

a) Initiating/maintaining contact with the reporting party to receive and/or impart additional information.
b) Collect and preserve additional evidence.
c) Provide ongoing notifications to the public and other agencies as appropriate.
d) Make necessary record checks and contacting agencies or persons who could be helpful in locating the missing person.
e) Ensuring communications modifies an/or removes data from NCIC/NCIS as it is received.

I. **Missing Juvenile/Runaway-Deputy Responsibilities:** If after an initial investigation a deputy determines a missing juvenile does not meet the criteria listed above for unusual circumstances, the juvenile shall be considered a runaway and the deputy shall adhere to the following procedures:

1. The deputy shall gather all appropriate information for the completion of a Notification of Lost or Missing Person Form and an incident report. The deputy should ensure the Lost or Missing Person Form is signed by the parent or guardian and a photograph of the child is attached.

2. The deputy shall attempt to follow-up on all available information in an attempt to locate the runaway. Generally, this follow-up shall be completed by the initially assigned deputy.

3. If the runaway is not located, the deputy shall notify Communications to enter the juvenile in NCIC/NCIS as a runaway.

4. The parent or guardian shall be given the original report number. The parent or guardian shall be advised to notify Communications if the juvenile returns to ensure a return runaway incident report is completed and the juvenile is removed from NCIC/NCIS.

J. **Returned Juvenile/Runaway-Deputy Responsibilities:** If the runaway juvenile is located or returns home after an incident report has been completed, the deputy making contact with the juvenile shall adhere to the following procedures:

1. The deputy shall contact the juvenile's parents or guardians and determine if the juvenile can be returned to their custody. If the deputy, after speaking with the parents or guardians, determines the juvenile will likely runaway again or returning the juvenile to the parents or guardians is not appropriate, then the juvenile shall be transported to the Juvenile Justice Center and procedures outlined for juvenile runaway detention shall be followed (see P-4720 Juvenile Detention/Citation).

2. The deputy shall notify Communications to have the juvenile removed from NCIC/NCIS.

3. The deputy shall complete a returned runaway incident report using the original runaway incident report number.